



TYPE: Article

Title: Life as Art: Aesthetic Virtue and Moral Obligation.

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Source: Journal for Cultural and Religious Theory (JCRT)

Published by: Whitestone Publications

Stable URL: <https://jcrt.org/archives/17.3/schmidt/>

DOI (newest version): [10.17613/3p543-e3k85](https://doi.org/10.17613/3p543-e3k85)

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LIFE AS ART: AESTHETIC VIRTUE AND MORAL OBLIGATION

Introduction

Virtue ethics has received a great deal of attention over the last few decades. While some of the corresponding works are dealing with questions of aesthetics, there appear to be only very few discussions that devote themselves to what could be called *aesthetic virtue*; yet aesthetic virtue might inspire ethical debates in more than one respect.

When addressing the notorious question “why be moral?”, aesthetic virtue can provide a description of the ability to perceive the unique style that another human being gives to his or her life, and this essay argues that this very perception exercises ethical force on the perceiving subject. Additionally, to call this ability to perceive the unique personality of another human being a virtue highlights the fact that it can and indeed must be cultivated. Hence the concept of aesthetic virtue can provide an orientation for processes of ethical training.

In our everyday work on ethics, one of the persistent concerns is certainly how we can generate ethical ideas that are actually *binding* and not merely consistent. When confronted with the temptation to do something that is appealing to us personally though we aware that it is morally wrong, we need a kind of moral incentive or motivation that is more compelling than theoretical moral reasoning.

The question is how moral obligation can gain a pull, a force that actually incites us to do what we ought to do. Scholars working in the emerging fields of moral psychology and behavioral ethics have been quite successful in making the overall claim that we are very good at excusing ourselves from moral obligations which we in fact do understand to be valid but in practice decide to ignore when it is more convenient.¹

Though the list of empirical studies that show the poor morality of most people is long, Eric Schwitzgebel notably explored the moral behaviour of professional ethicists in numerous studies.² Schwitzgebel looked at the loss-rates for particular library books that only professional ethicists were likely to need, and he also inquired whether professional ethicists would be inclined more than average to pay their conference fee when payment was mandatory but known

¹ J. M. Doris, *Lack of character: Personality and moral behavior* (Cambridge, U.K., New York: Cambridge University Press, 2005).

² J. Rust and E. Schwitzgebel, “Ethicists’ and Nonethicists’ Responsiveness to Student E-mails: Relationships Among Expressed Normative Attitude, Self-Described Behavior, and Empirically Observed Behavior,” *Metaphilosophy* 44, no. 3 (2013).

not to be enforced.³

The Problem of Obligation

Disappointingly, the result of Schwitzgebel's studies was that being a professional ethicist makes moral behavior even *less* likely. It is such observations that make the question "*why be moral*" so acute. We must find a means to make ethical ideas compelling. Theoretical knowledge of ethical argumentations is empirically disqualified (at least to some extent) when it comes to the question of how to convey morality.

My own attempt to answer this question adopts the *second person standpoint*.⁴ Broadly speaking, *the other person* is the answer to the question of *why we should be moral*. This claim then begs explanation: how can the needs and the rights of the other person be binding for us? I will examine two 'classical' and powerful attempts to answer this question, and then move beyond these attempts and make a proposal of my own; my own proposal will highlight what I would call "*aesthetic virtue*."⁵

Famously, Emmanuel Lévinas has grounded his ethics in the encounter with the other. But the answer that Lévinas gives to the question how the other person can be represented in my own moral rationale is ultimately unsatisfying: I am supposed to virtually dissolve and to be emptied out by the encounter with the other. When meeting the other, the identity of the I is shattered, the I is handed over to an absolute vulnerability, which leads to endless suffering: I become the hostage (*otage*)⁶ of the other, the accused, the persecuted, I lose my ground.⁷

The absolute singularity of the other person is utterly incompatible to everything that I myself am; so when encountering the other, I stop being a subject, I am transformed into an addressee, into an object of the ethical claim that the other has on me.⁸ It is to be like a stranger, says Lévinas, hunted down even in one's home, contested in one's own identity.⁹ ¹⁰ The other person is *sacred* in his or her utter and inescapable demand on me, says Lévinas.¹¹ So Lévinas's answer to

³ E. Schwitzgebel, "Are ethicists any more likely to pay their registration fees at professional meetings?," *Economics and Philosophy* 29, no. 03 (2013).

⁴ S. L. Darwall, *The second-person standpoint: Morality, respect, and accountability* (Cambridge, Mass., London: Harvard University Press, 2009).

⁵ D. M. Woodruff, "A Virtue Theory of Aesthetics," *Journal of Aesthetic Education* 35 (2001); D. Came, "Nietzsche on the Aesthetics of Character and Virtue," in *The Oxford handbook of Nietzsche*, ed. Ken Gemes and John Richardson, Oxford handbooks in philosophy (Oxford, U.K., New York: Oxford University Press, 2013), 127–42; P. Cafaro, "The Naturalist's Virtues," *Philosophy in the Contemporary World* 8 (2001). On *ars vivendi* as a dimension of virtue ethics see Hans-Joachim Höhn, *Das Leben in Form bringen: Konturen einer neuen Tugendethik* (Freiburg im Breisgau: Verlag Herder, 2014), 149ff.; on virtue and creativity see C. Swanton, *Virtue ethics: A pluralistic view* (Oxford, New York: Oxford University Press, 2005), 161ff.

⁶ E. Lévinas, *Otherwise than being, or, Beyond essence* (Pittsburgh, Pa.: Duquesne University Press, 1998), 184.

⁷ *Ibid.*, 49.

⁸ *Ibid.*, 112.

⁹ *Ibid.*, 92.

¹⁰ *Ibid.*, 69.

¹¹ E. Lévinas, *Time and the other and additional essays* (Pittsburgh, PA: Duquesne University Press, 1987).

the question of how the other person is presented in one's own moral rationale is simply: the other person *takes over*. However inspiring and impressive Lévinas' moral thought might be, propagating the dissolution of the *I* cannot be a satisfying reply to the question of why the *I* should be moral.

And yet the opposite route is not satisfying either. Immanuel Kant also thinks that the other human being is sacred, but he avoids the tremendous cost to one's self that Lévinas is claiming. For Kant, the other human, just like every human being, has access to the moral law by reason. *This* is what makes him or her sacred, sacred meaning: never to be seen as a means to an end. And yet strangely, the other person as "other" disappears in Kant.

The other person is to be respected and exerts a moral force on us because the other person is an exemplar of mankind to which we owe respect. So for Kant, very unlike Lévinas, the particularity of the other person does not matter; Iris Murdoch is quite right when she says that Kant is "afraid of the particular".¹² We are supposed to meet the other person with respect because the other person is sacred as a rational being, not as an individual.

Intersubjective encounter is ultimately not the encounter between individuals, but the encounter of intellects that personify human reason and dignity *as such*. And this, I would object, fails to do justice to the idiosyncrasy of human beings. So while in Kant, the individuality of the other person disappears, Lévinas is propagating the dissolution of the self when confronted with another individual. Both Kant and Lévinas very powerfully describe the moral force that is exerted in the encounter between persons, but both of their accounts are dissatisfying as the individuality of either the "I" or the "you" is destroyed.

Ars Vivendi – A Critical Reappraisal with Special Reference to Nietzsche

If we strive to ground ethics in the encounter with the other person, we need to move beyond the extremes presented by Kant and Lévinas. In an attempt to do just that, I use the idea or concept of "life as art", *ars vivendi* as a threshold.¹³ Every human being is a piece of *art* in their own right. This idea might sound quite liberal or postmodern; yet "Life as art" resonates in many authors throughout the history of Christianity; Gregory of Nyssa for example claims in his "life of Moses" that

"We are in some manner our own parents, giving birth to ourselves by our own free choice in accordance with whatever we wish to be, whether male or female, moulding ourselves to the teaching of virtue or vice."¹⁴

And Nicolas de Cusa thinks that just like God is an omnipotent creator, governor and conserver of all things, the human being is "the

¹² I. Murdoch, "The Sublime and the Good," in *Existentialists and mystics: Writings on philosophy and literature*, ed. Peter J. Conradi, 205–20 (New York: Penguin, 1999), 214; cf. Seyla Benhabib, *Situating the self: Gender, community, and postmodernism in contemporary ethics* (New York: Routledge, 1992); R. S. Dillon, "Respect and Care: Toward Moral Integration," *Canadian Journal of Philosophy* 22 (1992), 116f., note 18.

¹³ P. Bieri, *Eine Art zu leben: Über die Vielfalt menschlicher Würde* (München: Hanser, 2013).

¹⁴ Gregory, *The life of Moses*, *The Classics of Western Spirituality* (New York: Paulist Press, 1978), 54f.

contracted beginning of the creating, governing, and conserving of its own order.”¹⁵ He quotes from pseudo-Hermes Trismegistus that “man is a second God.”

“For just as God is the Creator of real beings and of natural forms, so man is the creator of conceptual beings and of artificial forms that are only likenesses of his intellect [...].”¹⁶ This tradition is then advanced prominently by the renaissance philosopher Pico della Mirandola in his oration on the dignity of man, where he, Pico, famously has God say to God’s creature:

“We have given you, Adam, no fixed seat or form of your own, no talent peculiar to you alone. This we have done so that whatever seat, whatever form, whatever talent you may judge desirable, these same may you have and possess according to your desire and judgment. [...] We have made you neither of heaven nor of earth, neither mortal nor immortal, so that you may, as the free and extraordinary shaper of yourself, fashion yourself in whatever form you prefer.”¹⁷

I have quoted this last long passage because it is a core text for the Christian traditions of life-as-art. The human being is his or her own creator, unlike other creatures, he or she is not predefined by nature but rather destined to fashion him- or herself. And this tradition then becomes popular beyond the confines of Christianity when Nietzsche famously defines the human being as the “still undetermined animal”.¹⁸ Human beings, says Nietzsche, are essentially unbound; therefore, they must give themselves shape, or as Nietzsche has it: human beings must give themselves style.

One thing is necessary. – To “give style” to one’s character – a great and rare art. It is practiced by those who survey the strengths and weaknesses of their nature and then fit them into an artistic plan until every one of them appears as art and reason and even weaknesses delight the eye. Here a large mass of second nature has to be added; there a piece of original nature has been removed – both times through long practice and daily work at it.¹⁹

It is worth paying attention to the wording. To give oneself “style” is not an act of free spontaneity, as if the human being could simply jump into the kind of self that she chooses. To think that would mean to misinterpret the seriousness of the idea of *ars vivendi*. At any rate

¹⁵ Nicholas of Cusa, “On Surmises (De Coniecturis, Part One),” in *Complete philosophical and theological treatises of Nicholas of Cusa*, vol 1, ed. Nicolaus and Jasper Hopkins, 163–297 (Minneapolis: Banning Press, 2001), 237 (book II, chapter 14).

¹⁶ Nicholas of Cusa, “De Beryollo,” in *Complete philosophical and theological treatises of Nicholas of Cusa*, vol 2, ed. Nicolaus and Jasper Hopkins, 789–839 (Minneapolis: Banning Press, 2001), 794 (de Beryllo 6).

¹⁷ Pico della Mirandola, Giovanni et al., *Oration on the dignity of man: A new translation and commentary* (New York: Cambridge University Press, 2012), 117.

¹⁸ F. Nietzsche, *Beyond Good and Evil*, ed. R.-P. Horstmann and Judith Norman, transl. J. Norman, Cambridge 2002, 56 (§ 62). It should be noted that by referring to Nietzsche’s view on human creativity, I am not adopting Nietzsche’s somewhat aesthetic synthesis of ethics and aesthetics. Cf. D. Came, “Nietzsche on the Aesthetics of Character and Virtue”, in: K. Gemes and J. Richardson (eds.), *The Oxford handbook of Nietzsche* (Oxford handbooks in philosophy), Oxford, U.K./New York 2013, 127–142.

¹⁹ F. Nietzsche, *The Gay Science: With a prelude in German rhymes and an appendix of songs*, ed. Bernard Williams, Nauckhoff Josefine, and Adrian Del Caro, Cambridge texts in the history of philosophy (Cambridge, U.K., New York: Cambridge University Press, 2001), 163f. (No 290).

Nietzsche is not to be charged of such misinterpretation, since he made it crystal clear that self-formation is an arduous ascent to the heights of one's own possibilities.

[...] whoever would learn to fly one day must first learn to stand and to walk and run and climb and dance: one cannot fly into flying.²⁰

This arduous work amounts to hard work on oneself:

Like a sculptor, human beings have to chisel themselves [freischlagen] with patient work.²¹

Aesthetic virtue

Let me pause briefly to point out where this has taken me. I have raised the question of where ethics can gain its pull if it is true that competences in ethical reasoning do not make us moral, and I have then spelled out the idea that the encounter with other subjects could be the ground of morality. Yet both the Lévinasian and the Kantian accounts for moral encounters have not convinced me.

Encountering the other person must mean to come to terms with the other person's idiosyncrasies, with his or her uniqueness; Kant failed to see this altogether, whereas Lévinas' conjuration of the absolute uniqueness of the other individual has the ultimately brutal consequence of devouring one's own singularity.

My proposal is that the moral encounter with the other person is to see the other's unique art of life, which combines universal and individualistic points. Encountering the other means to be responsive to how the other individual is creating a particular way of life.²² By forming one's life, a human being is realizing a universal value, namely the value of the freedom to be an individual self.

Yet when we respond to another person's unique realization of human creative freedom, we do not merely respond to this universal value; that in itself wouldn't impact us very much. We respond to the unique style, the aesthetics of the other person, to his or her unique art of life. We respond to the dignity that lies in how the other person seeks an individual style for his or her existence. Responding to the style of the other person means responding to the other person's singular way in which he or she realizes the universally human project of creating one's life. So this brings together the dimensions of uniqueness and universality which I find to be unbalanced in Kant and in Lévinas.

The challenge lies in the obscurity of the unique art of life that each person lives by. How another person adopts a conventional role,

²⁰ F. Nietzsche, *Thus spoke Zarathustra: A book for all and none*, Cambridge texts in the history of philosophy (Cambridge, New York: Cambridge University Press, 2006); ed. Adrian Del Caro; Robert B. Pippin (III. § 2 On the Spirit of Heaviness).

²¹ F. Nietzsche, *Nachgelassene Fragmente 1880 – 1882: Kritische Studienausgabe*, Bd. 9, 2nd ed., ed. G. Colli and M. Montinari (München: Deutscher Taschenbuch Verlag, 1988), 361 (= NF-1880,7[213]; transl. my own). The image of the sculptor ought to be taken quite literally. Just like the statue is not "there" before it is cut out of the rock, the self of the human being is not there before the work on the self is carried out. In his inspiring monograph on Nietzsche entitled "life as literature", Nehamas makes it quite clear that the self is not just "there", waiting for liberation, but actually evolves through the creative act of self-formation: A. Nehamas, *Nietzsche: Life as literature* (Cambridge, Mass. etc: Harvard University Press, 1987), 173f.

²² Cf. Dillon, "Respect and Care," 116ff.

which is of course unavoidable, and then countersigns this role in his or her unique kind of way is usually not palpable. But we can learn to see and to become perceptive for the peculiar sacredness of a person, for the moral pull that his or her dignity exerts. Indeed to truly see another person is always to be in the process of learning to see, because we cannot simply apply preconceived patterns of perception when it comes to perceiving an individual. Learning to see is pivotal precisely because uniqueness of character can be quiet and hidden.²³

This idea of learning is what caused me to turn to virtue ethics. Virtue theory has seen a serious revival during the last decades; many critics of this renaissance have come to think that too much credit has been given to virtue.²⁴ I will not rehash this debate but want to make only one point. The term “virtue” has been very nicely defined by Christine Swanton as follows:

A virtue is a good quality of character, more specifically a disposition to respond to, or acknowledge, items within its field or fields in an excellent or good enough way.²⁵

Quite importantly, Swanton makes it clear that the “items” within a field include the self of the person; so a virtue is a quality of character that allows me to respond well to “items” that are out there, but also to the “item” that I myself am. Swanton does not use the term aesthetic virtue, but she paves the way to what I take from her by describing creativity as “a mode of moral acknowledgment which informs a range of virtues, just like love and respect,²⁶ without being a virtue in itself. If we take this further into the direction of what I would like to call “aesthetic virtue”, then aesthetic virtue would be a quality of character that allows me to respond to myself and to others in an aesthetically good way.

Responding to myself in an aesthetically good way would then mean to successfully “fashion myself” or create myself as Origen, Nicolaus de Cusa, Pico della Mirandola and of course Nietzsche have suggested we ought to do. Responding to the other person in an aesthetically good way would mean to appreciate the particular kind of form and shape that the other person has given to his or her life.

Bridging Kant and Lévinas

Appreciating the intentionally cultivated forms of the lives of others would allow us to build a bridge between the unhappy extremes that we find in Kant and Lévinas. Creating oneself is a very unique and peculiar kind of thing by nature, as Pico has already emphasized, there are no predefined rules for how it is done. To come to appreciate how the other person has given him or herself a particular shape and style is also something that we might call an “event” (drawing from

²³ Cf. Martha Nussbaum, “The Discernment of Perception: An Aristotelian Conception of Private and Public Rationality,” in *Love’s knowledge: Essays on philosophy and literature* (New York, NY: Oxford Univ. Press, 1992).

²⁴ C. Halbig, *Der Begriff der Tugend und die Grenzen der Tugendethik* (Berlin: Suhrkamp, 2013); G. Sreenivasan, “The situationist critique of virtue ethics,” in *The Cambridge companion to virtue ethics*, ed. Daniel C. Russell, Cambridge Companions (Cambridge: Cambridge University Press, 2013), 290–314; M. Honecker, “Schwierigkeiten mit dem Begriff Tugend,” in *Tugendethik*, ed. K. Rippe and P. Schaber (Stuttgart: Reclam, 1998), 166–84.

²⁵ Swanton, *Virtue ethics*, 19.

²⁶ *Ibid.*, 161. Swanton also lists criteria for creativity, which are novelty, surprise and value (*ibid.*, 165).

Derrida);²⁷ we cannot preconceive what it is like to come to terms with another person's individuality.

We can, however, work on our capacity of perception; we can work on the perception of our own potential and particular possibilities and limitations, and we can also learn to see just *how* the other person is struggling with this very task. It is because of this dimension of "work" and of learning that I find the concept of virtue attractive. In a famous note, Wittgenstein claimed that all the work of philosophy is work on oneself, on how one sees things;

Working in philosophy – like work in architecture in many respects – is really more working on oneself. On one's own interpretations. On one's way of seeing things (And what one expects from them).²⁸

This, I believe, is not restricted to philosophy and architecture, but actually indicates an ethical dimension of the "arts subjects" on the whole. Virtues are traits of character that can and ought to be cultivated. To cultivate aesthetic virtues means to cultivate our ability to live creatively and to appreciate the unique self-formation of the other. To cultivate aesthetic virtues cannot be a function of ethics – that would mean to suffocate the aesthetic in the ethical. To try to find possible links between arts and ethics mandates that one lets art be art and that one lets it play rather than exploit it to fix ethical issues.

Aesthetic virtue comes through *praxis* in the Aristotelian sense, it is a cultivation of the highest human capacities that has a worth and dignity in itself rather than being a function of some other end. Learning to see is an end in itself, but if it succeeds, it has an ethical impact. If the cultivation of aesthetic virtue actually does succeed, then that would have profound ethical implications as it would also help us to perceive the dignity and inviolability, indeed the sacredness of the unique and *particular* other person as an individual.²⁹ This will in no way *replace* normative ethics, indeed to do so need not (and I think should not) be the aim of virtue ethics. A theory of aesthetic virtue and its cultivation can orient educational processes and help persons to learn to see that indeed they should be moral.

But then the question *how* to be moral is solved by virtue ethics alone.

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²⁷ J. Derrida, "Une certaine possibilité impossible de dire l'événement," in *Dire d'événement, est-ce possible? Séminaire de Montréal, pour Jacques Derrida*, ed. Gad Soussana, Jacques Derrida and Alexis Nouss, Esthétiques (Paris: Éditions L'Harmattan, 2001), 79–112.

²⁸ L. Wittgenstein, *Culture and Value*, ed. Wright, G. H. von, Heikki Nyman, and Peter Winch (Chicago, IL: University of Chicago Press, 1980), 16.

²⁹ Cf. R. Gröschner, ed., *Das Dogma der Unantastbarkeit: Eine Auseinandersetzung mit dem Absolutheitsanspruch der Würde*, Politika 2 (Tübingen: Mohr Siebeck, 2009).

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